



CHAPTER 12.

An Act to postpone the making of new valuation lists for rating purposes in England, and for purposes connected therewith.

[21st March 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The period for which the valuation lists in force under the Valuation (Metropolis) Act, 1869, on the date of the passing of this Act shall remain in force is hereby extended until the fifth day of April in the prescribed year, and section forty-six of that Act shall, in relation to that period, have effect as if the references to the first four years, the fifth year, and the last four years, of the period were respectively references to every year except the last year, the last year, and every year except the first year, of the period.

Postpone-
ment of
next valua-
tion till
after end of
emergency.
32 & 33 Vict.
c. 67.

(2) While the said valuation lists remain in force, any increase or reduction in value attributable directly or indirectly to the present emergency, to the extent that the increase or reduction—

- (a) is peculiar to a particular hereditament; or
- (b) affects a particular hereditament and also other hereditaments of a comparable character in the rating area in question but does not represent

CH. 12. *Rating and Valuation* 3 & 4 GEO. 6.
(*Postponement of Valuations*) Act, 1940.

a general alteration in the values of all classes, or substantially all classes, of hereditaments in that area,

shall, in relation to that hereditament, be deemed to be an alteration in the matters stated in the valuation list within the meaning of paragraph (1) of section forty-six of the said Act (which relates to supplemental lists) and to be such an increase or reduction in value as is referred to in section forty-seven of the said Act (which relates to provisional lists).

This subsection shall apply in relation to any such increase or reduction as aforesaid whether it occurred before or after the passing of this Act, and any such increase or reduction—

- (i) shall be taken into account for the purposes of the said section forty-seven notwithstanding that it occurred before the beginning of the year; and
- (ii) shall, if a provisional list or a requisition for a provisional list has been made in the preceding twelve months in respect of the hereditament, be taken into account for the purposes of any revision under the said section forty-six, notwithstanding that the increase or reduction occurred before the beginning of those twelve months.

1 & 2 Geo. 6.
c. 19.

(3) In subsection (1) of section one of the Rating and Valuation (Postponement of Valuations) Act, 1938, for the reference to the first day of April nineteen hundred and forty-one there shall be substituted a reference to the first day of April in the prescribed year.

2 & 3 Geo. 6.
c. 67.

(4) In this section, the expression “the prescribed year” means such year as His Majesty may by Order in Council appoint, not being later than the second year after that in which the end of the present emergency falls; and in this subsection the word “year” means a year beginning with the first day of January, and the expression “the end of the present emergency” means such date as may be declared by His Majesty under the Courts (Emergency Powers) Act, 1939, to be the date on which the emergency that was the occasion of the passing of that Act came to an end.

3 & 4 GEO. 6. *Rating and Valuation* CH. 12.
 (*Postponement of Valuations*) Act, 1940.

2. This Act may be cited as the Rating and Valuation (Postponement of Valuations) Act, 1940, and the Rating and Valuation Acts, 1925 to 1938 and this Act may be cited together as the Rating and Valuation Acts, 1925 to 1940, and the Rating and Valuation (Metropolis) Acts, 1869 to 1938 and this Act may be cited together as the Rating and Valuation (Metropolis) Acts, 1869 to 1940. Short title
and citation.

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